

		the application or any of the supporting documents. Nor has one been filed separately. Because Plaintiff failed to provide notice of this hearing the application is denied.
5.	GOLDFIELD VS. ROMERO MOTORS, LLC. 2024-01435095	MOTION FOR TERMINATING SANCTIONS Defendant Romero Motors, LLC dba Oremor Capistrano LLC dba Capistrano Valley Toyota’s motion for terminating sanctions against plaintiff Daniel Goldfield is DENIED without prejudice. “[T]erminating sanctions are to be used sparingly, only when the trial court concludes that lesser sanctions would not bring about the compliance of the offending party.” (<i>R.S. Creative, Inc. v. Creative Cotton, Ltd.</i> (1999) 75 Cal.App.4th 486, 496.) “The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. ‘Discovery sanctions “should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.”’ [Citation.] If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse. ‘A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.’ [Citation.]” (<i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 992 (<i>Doppes</i>) (Footnote 5 omitted.)) Before issuing terminating sanctions, the court should usually grant lesser sanctions such as orders staying the action until the derelict party complies, or orders declaring matters as admitted or established if answers are not received by a specified date, often accompanied with costs and fees to the moving party. (<i>Deyo v. Kilbourne</i> (1978) 84 Cal.App.3d 771, 796.) Defendant has shown Plaintiff has violated the court’s 3-6-26 order granting Defendant’s Motion to Compel Responses to Form Interrogatories, Set One; Special Interrogatories, Set One; Requests for Production, Set One; and imposing sanctions on Plaintiff. (Solandt Decl., ¶ 8, Ex. K.) Neither party appeared at the hearing and on 3-10-26, the court clerk emailed the court’s 3-6-26 order to the parties. (ROA 45.) Defendant’s counsel states he did not appear at the hearing because on 12-19-25, Plaintiff’s counsel advised Defendant’s counsel that Plaintiff had passed away. (Solandt Decl., ¶ 8-9.) To date, no responses or sanctions have been received. (Solandt Decl., ¶ 8.) Terminating sanctions are appropriate where violation of the court’s order is willful. (<i>Doppes, supra</i>, 174 Cal.App.4th at 992.) Since Plaintiff has passed away and cannot verify the responses, the court

		cannot find the violation is willful. Therefore, the request for terminating and monetary sanctions is DENIED. Plaintiff's counsel is ORDERED to appear at the hearing to discuss whether in light of the passing of Plaintiff, the Complaint will be dismissed or a personal representative or successor in interest will be substituted for decedent. Moving Defendant to give notice.
6.	ZHANG VS. KING 2024-01430779	1. MOTION FOR LEAVE TO INTERVENE Intervenor Daniel Belshaw's Motion for Leave to Intervene is GRANTED. Intervenor's requests for judicial notice are granted. "At any time after notice of pendency of action has been recorded, any party, or any nonparty with an interest in the real property affected thereby, may apply to the court in which the action is pending to expunge the notice. However, a person who is not a party to the action shall obtain leave to intervene from the court at or before the time the party brings the motion to expunge the notice. Evidence or declarations may be filed with the motion to expunge the notice." (Code Civ. Proc., § 405.30.) Intervenor moved for leave to intervene and to expunge the notice at the same time. Thus, his Motions are timely. "The court shall, upon timely application, permit a nonparty to intervene in the action or proceeding if either of the following conditions is satisfied: [¶] (A) A provision of law confers an unconditional right to intervene. [¶] (B) The person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties." (Code Civ. Proc., § 387(d)(1).) Intervenor has a sufficient interest in the litigation to allow intervention. A property owner whose property has been mistakenly encumbered by a lis pendens clearly has such an interest, as the lis pendens "acts as a cloud against the property, effectively preventing sale or encumbrance until the litigation is resolved or the lis pendens is expunged." (<i>Amalgamated Bank v. Superior Court</i> (2007) 149 Cal.App.4th 1003.) Thus, the Motion is granted. 2. MOTION TO EXPUNGE LIS PENDENS Intervenor Daniel Belshaw's Motion to Expunge Lis Pendens is GRANTED.